



CHAPTER 11.

An Act to authorise the provision of financial assistance to inshore fishermen and persons desiring to engage in the inshore fishing industry. [10th December 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this Act, the Minister of Agriculture and Fisheries and the Secretary of State concerned with the fishing industry in Scotland (hereinafter referred to as "the Ministers") may, with the approval of the Treasury, make arrangements for the provision of financial assistance for persons engaged in the inshore fishing industry and persons desiring to engage therein, including in particular persons who have previously been so engaged and persons who have served whole-time in the armed forces of the Crown or in the mercantile marine.

(2) Assistance may be given under this Act to any such persons as aforesaid in connection with the acquisition of boats or equipment for use for the purposes of the said industry, or in connection with the improvement or reconditioning of such boats or equipment, and may be given either by way of loan or, in case of need, by way of grant, or partly by way of loan and partly by way of grant :

Provided that the amount of any grant which may be so made in respect of the acquisition of any boat or equipment shall not exceed one third of the price, and the amount of any grant which may be so made in respect of the improvement or reconditioning of any boat or equipment shall not exceed one third of the cost of the improvement or reconditioning.

(3) The aggregate amount of any grants made in accordance with arrangements made under this section shall not exceed five

hundred thousand pounds, and the aggregate amount of any loans so made shall not exceed eight hundred thousand pounds, and subject to the following provisions of this Act no such grant or loan shall be made after the expiration of the period of five years beginning with the date of the passing of this Act.

(4) Any sums required by the Ministers for making grants or loans in accordance with arrangements made under this section shall be paid out of moneys provided by Parliament, and any sums received by the Ministers by way of interest on any such loan, or by way of repayment of the principal thereof, shall be paid into the Exchequer.

Power to
extend period
for making
grants and
loans.

2.—(1) If it appears to the Ministers that, owing to the circumstances prevailing during the period of five years referred to in section one of this Act, it has not been possible for persons referred to in that section to avail themselves to the extent anticipated of the financial assistance provided thereunder, they may by order extend that period for a further period not exceeding two years, and thereupon the said section one shall have effect accordingly.

(2) An order made under this section shall be laid before Parliament as soon as may be after it is made, and if either House, within the period of forty days beginning with the day upon which the order is laid before it, resolves that the order be annulled, the order shall thereupon cease to have effect, but without prejudice to the making of a new order.

In reckoning the said period of forty days no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

56 & 57 Vict.
c. 66.

(3) Section one of the Rules Publication Act, 1893, shall not apply to any order made under this section.

Interpretation,
short title
and extent.

3.—(1) For the purposes of this Act the expression " the inshore fishing industry " means the business of catching and landing in Great Britain fish, including shell-fish, found in the sea, by means of fishing boats not exceeding seventy feet in length and not exceeding fifty tons gross tonnage :

Provided that no assistance shall be given under this Act in respect of any boat or equipment which is wholly or mainly used or intended for use for the purposes of herring fishing.

(2) This Act may be cited as the Inshore Fishing Industry Act, 1945.

(3) This Act shall not extend to Northern Ireland.

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